The High Court Of Madhya Pradesh
CRR-5490-2018
(NEELAM @ NEERAJ Vs THE STATE OF MADHYA PRADESH)
Jabalpur, Dated : 08-02-2019
Record of both the courts below are received.
Today this case is listed for admission and on I.A.No.14/2019 which is an application for suspension of sentence and grant of bail.
With the consent of learned counsel for the parties, this revision petition is finally heard.
This revision petition has been filed by the applicant under Section 397/401 of the Cr.P.C. being aggrieved by the judgment of conviction and order of sentence dated 14.8.2015 passed by Additional Sessions Judge, Bina, District Sagar, in Criminal Appeal No.259/2016 dismissing the appeal and affirming the judgment dated 30.10.2013 passed by the Judicial Magistrate First Class, Bina, District Sagar in Criminal Case no.1143/2011 whereby the applicant has been convicted under Section 379 of the IPC for stealing one electric motor pump valued Rs.8,000/- and sentenced to undergo RI for 1 year along with fine of Rs.500/-.
Learned counsel for the applicant has submitted that the applicant is the first offender. The applicant is in custody since 11.10.2018.
Learned Govt. Advocate appearing for the State has contended that the finding of conviction is based on legal evidence.
In view of this court, there is enough evidence to prove the charge. The conviction of the applicant recorded by the Courts below for the offence under Sections 379 of the IPC is hereby affirmed.
Consequently, the criminal revision is partly allowed. The sentence of the applicant is hereby set aside and he is sentenced to the period already undergone by him in jail.
JUDGE

Source: trimmed excerpt of a public judgment from the LegalAI curated corpus, Neelam @ Neeraj vs The State Of Madhya Pradesh on 8 February, 2019, Madhya Pradesh High Court (https://indiankanoon.org/doc/136492342/). Judgment data sourced from Indian Kanoon API. Counsel names and signature blocks were removed.